

****Interview with Pasquale Stanzone - Privacy Guarantor:****

"Innovation, it is wrong to suffer it. The Public Administration has lacked a vision."

"From the public sector, attention to digitalization and the protection of citizens, but there is still much to be done."

Interview with Pasquale Stanzone, President of the Guarantor for the protection of personal data (by Patrizia Penna, Quotidiano di Sicilia, August 15, 2023)

Control and sanctioning power certainly represent "the hard core" of the activities carried out by the Privacy Guarantor, but alone they are not sufficient to indicate the path of "widespread awareness," which is the only one that can lead us to the full protection of citizens' rights. Inalienable, imprescriptible, and non-negotiable rights. The digital era imposes a deep reflection on the challenges that await us: one of these is to guide innovation, rather than suffer it. We discussed this with Pasquale Stanzone, Guarantor for the protection of personal data.

****Inspections tripled in 2022:**** Was this a precise strategy, desired to intensify controls, or a choice dictated by changing times that require greater attention to privacy protection?

"The inspection function is one of the most decisive among the various attributions of the Guarantor. It constitutes, in fact, the necessary prerequisite for the ascertainment of violations and, above all, for the adoption, whenever possible, of measures suitable to minimize the risks related to unlawful processing. The purpose of the inspection activity is not so much and not only the exercise of the sanctioning power but rather the ascertainment of irregularities and, if necessary, the most timely intervention possible to protect the interested parties, primarily through the interruption of incorrect processing. The inspection activity, therefore, expands proportionally to the widening of the Guarantor's intervention scope: the more it is deemed necessary to extend the control area, the more the perimeter of the inspection activity will expand. The significant increase in inspection activity recorded in 2022 is a reflection of the more general increase in the overall activities of the Guarantor, called to intervene in increasingly relevant areas, both quantitatively and qualitatively."

****Privacy and the right to report:**** The Guarantor has promoted training and communication initiatives, but often it is the same information professionals who insist on the sensationalism of tragic events. Are harsher sanctions needed?

"The right to (and to) information is a cornerstone of democracy, as clarified by the Constitutional Court since its earliest rulings. But it must be exercised with respect for the dignity of the individuals involved and, above all, according to the criterion of essentiality, which legitimizes the dissemination of even personal data, provided it is functional to informative purposes regarding news of public interest. This allows fulfilling the fundamental informative function without, however, reducing journalism to a peep through the keyhole, which adds nothing in terms of information but violates the dignity of the person. The relationship between the press and privacy must be managed in the constant search for a reasonable balance between the right to information and the dignity of the person, which must never be instrumentalized for the sake of reporting. This is especially true for those in conditions of particular vulnerability: detainees, arrested individuals, minors, the sick. Sensationalism should not be sought, nor should the curiosity of the public be stimulated; what is of public interest should not be confused, above all, with what is merely of interest to the public. Sanctions can certainly represent the necessary consequence of particularly serious violations, but the focus should be on their prevention through responsible journalism. A widespread awareness of the importance of fulfilling the informative function always with the utmost respect for the dignity of the person is necessary. The action of the Guarantor aims primarily at this."

****Public Administration:**** The Guarantor is forced to remind ministries, regions, and local authorities about the protection of personal data. Has the situation improved compared to the past? Is there a greater sensitivity among the public towards the protection of citizens?

"The public administration is making significant efforts in the field of innovation, which the PNRR rightly includes among the priority objectives. However, it inevitably suffers from past mistakes and, above all, from the substantial lack, so far, of a comprehensive and forward-looking digitalization plan in the public sector. This has largely occurred without a comprehensive vision of computerization as a

prerequisite for the development of the country system. The fragmentation of innovation processes in the public sector, at various levels of government, risks replicating in this area the territorial inequalities typical of the Italian administration, further accentuating the heterogeneity in the level of services provided. The data protection discipline has played, in this sense, a very significant unifying role. As the most advanced normative source of digital governance, it has also promoted greater awareness in the public sector of the burdens to be fulfilled to act, rather than suffer, innovation. But there is still much to be done. The digitalization of the public administration must, in fact, be supported by a long-term "vision" that combines innovation and guarantees within a comprehensive project that unites the country, rather than fragmenting it further and puts technology at the service of democracy."

****Artificial intelligence employed in the fight****

****On Tax Evasion: Can This Pair Work?**

Under What Conditions?**

"AI can represent, even in the tax sector, a valid tool for risk analysis on which current policies are investing. However, it must be ensured that the measures (also provided for by the tax delegation) based on the use of AI respect the guarantees established by data protection regulations, safeguarding both the individual and the integrity of the assessments themselves. As recent cases have shown, compliance with data protection regulations often represents an important guarantee against the risk of bias that may affect the algorithms used for tax risk analysis. Data protection thus becomes a guarantee not only of confidentiality of information flows and proportionality of controls to avoid massive profiling of consumption but also of the correctness of algorithmic analyses, safeguarding the efficiency and effectiveness of administrative action."

****Telemarketing: Has the Legislation Failed to Curb the Most Extreme Forms, Almost "Aggressive" Towards Citizens? What Commitment is Needed from Politics?****

"Telemarketing is deeply rooted in the current economic system. A radical opposition to it would require the restructuring of many business dynamics, a comprehensive employment plan for call center workers, a return to the opt-in system for promotional calls, a cross-cutting action against the phenomenon of spoofing (caller ID masking), and the massive use of non-consensual lists to 'sweep' up subscriptions to new contracts. However, some strong initiatives, such as those carried out by the Authority in cooperation with the Financial Police, involving the confiscation of illegally formed databases, can effectively initiate a counteraction against this phenomenon. The recently approved Code of Conduct on telemarketing and teleselling will also be useful, as it can provide significant momentum for the overall regulation of the sector. The Government has announced its intention to undertake legislative initiatives, to which the Authority has already offered its full availability."

****Minors and Social Media: More Controls, Stricter Rules, More Information and Education. What is the Order of Priority?****

"The use of social media, even by minors, should not be demonized but certainly regulated, prepared, and accompanied by solid digital education and an ethics of relationships that increasingly take place online today. Therefore, it is not a matter of establishing a hierarchy between regulation, control, and training, but of integrating all these components within a comprehensive and forward-looking protection strategy, which also includes the necessary accountability of platforms, promoted, moreover, on the aspect of protecting minors, by the recent Digital Services Act. This need for accountability is also addressed by the preparation—over which the Authority is vigilantly overseeing—of adequate age verification systems. These systems indeed prevent the exposure of younger users to age-inappropriate content and the evasion of rules on digital consent, aimed precisely at ensuring that minors do not access the internet in dangerous solitude. In any case, it is essential to invest, as the Authority has long been doing, in digital pedagogy (as also provided for by the law on cyberbullying), with initiatives that involve not only schools as the primary place of education but all institutions. Especially digital natives must learn to make technology an ally rather than an enemy of rights and freedoms."

****The Government Has Proposed Some Measures to Parliament Regarding Wiretapping; Are They Sufficient?****

"The draft law introduces certainly relevant measures to strengthen the guarantees of third parties whose conversations are occasionally intercepted and to limit the circulation of intercepted content, according to a balance with the right to information that Parliament must establish. However, some underlying directions of the Orlando reform, which has already introduced important measures for a proper balance between privacy, investigative needs, and the right to defense, could be further developed. In particular, the security guarantees of the digital archive where unused interceptions are stored could be strengthened, as their impermeability is crucial for the effectiveness of the new regulations. Furthermore, additional guarantees regarding the use of trojans could be introduced, whose potential must be regulated to prevent abuses, as clarified by the Supreme Court in our country and by the Constitutional Court in Germany. We provided our suggestions in January during a hearing in the Senate, a few days ago with our opinion on the draft law, and in September we will return to discuss with the Justice Commission, as part of a dialogue with Parliament and the Government that is particularly appropriate on these issues."